

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 09/15/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L24-07932
CASE NAME: NORTHSTAR EDUCATION FINANCE, INC. VS. DOMINIQUE THOMAS
***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT AND QUASH SERVICE OF SUMMONS FILED BY DEF. ON 04/20/2026**
FILED BY: THOMAS, DOMINIQUE
TENTATIVE RULING

Defendant moves to set aside the default judgment entered against her on October 2, 2025.

Plaintiff argues that defendant was served by substitute service. However, the documents that support that assertion are contradictory. Two documents, filed on March 6, 2025 make different assertions about that. One says that an unnamed person was served on December 30, 2024 at 9:35 a.m. The other says that Anna Ferrier, “front desk,” was served on January 8, 2026 at 11:39 a.m. Nothing in plaintiff’s opposition addresses that discrepancy. It is unlikely that both are true and that casts serious doubt on the veracity of both.

Defendant declares, in a sworn statement, that she received no notice of the service. Her statements, taken together, are sufficient to provide evidence that is the case.

Under CCP 473.5 defendant’s request is timely.

The motion is granted.

2. 9:00 AM CASE NUMBER: L25-00652
CASE NAME: CROWN ASSET MANAGEMENT, LLC VS. JUSTINA BANAGA

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR ENTERING JUDGMENT FILED BY PLTF. ON 05/11/2026**

FILED BY: CROWN ASSET MANAGEMENT, LLC

TENTATIVE RULING:

The motion is unopposed and properly supported. It is, therefore, granted.

3. 9:00 AM CASE NUMBER: L25-02002

CASE NAME: DISCOVER BANK VS. LISA KLEIN

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY:

TENTATIVE RULING:

The motion is unopposed and properly supported. It is, therefore, granted.

4. 9:00 AM CASE NUMBER: L25-03269

CASE NAME: CAPITAL ONE N.A. VS. DOUGLAS LINARES

***HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY DEF'S COUNSEL ON 05/07/2026**

FILED BY: LINARES, DOUGLAS

TENTATIVE RULING:

The motion is denied without prejudice. Counsel has failed to fill in section 3.b on the Form MC-052.

In addition, the Court notes that the moving papers refer to Los Angeles Superior Court and (although not relevant to the disposition of this motion) say "defendant was removed from the program..." without explaining what that means, or why that might be relevant.

5. 9:00 AM CASE NUMBER: L25-06712

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. BRUCE BABCOCK, JR.

***HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL & ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT FILED BY PLTF. ON 05/14/2026**

FILED BY: JPMORGAN CHASE BANK, N.A.

***TENTATIVE RULING 🏠**

The motion is unopposed and properly supported. It is, therefore, granted.

6. 9:00 AM CASE NUMBER: L25-07985

CASE NAME: CAPITAL ONE, N.A. VS. ALVIN KUMAR

***HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY PLTF'S DEF'S ON 05/13/2025**

FILED BY: KUMAR, ALVIN

TENTATIVE RULING:

The motion is denied without prejudice. Counsel has failed to fill in section 3.a on the Form MC-052.

7. 9:00 AM CASE NUMBER: L25-09269
CASE NAME: MIDLAND CREDIT MANAGEMENT, INC. VS. CHARISSE CASTILLO
*HEARING ON MOTION IN RE: MOTION TO SET ASIDE AND VACATE DEFAULT FILED BY PLFT ON
05/08/2026
FILED BY: MIDLAND CREDIT MANAGEMENT, INC.
TENTATIVE RULING:

The motion is unopposed and properly supported. It is, therefore, granted.

8. 9:00 AM CASE NUMBER: L25-11300
CASE NAME: WELLS FARGO BANK, N.A. VS. NATALIE FALATAU
*HEARING ON MOTION FOR DISCOVERY MOTION FOR AN ORDER DEEMING THE TRUTH OF THE
MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED FILED BY PLTF ON
05/08/2026
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

The motion is unopposed and properly supported. It is, therefore, granted.

9. 9:00 AM CASE NUMBER: L25-11515
CASE NAME: CAPITAL ONE N.A. VS. CHERYL EASTMAN
*HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT FILED BY
PLTF ON 05/07/2026
FILED BY: CAPITAL ONE N.A.
TENTATIVE RULING:

The motion is unopposed and properly supported. It is, therefore, granted.

10. 9:00 AM CASE NUMBER: L25-14236
CASE NAME: WELLS FARGO BANK, N.A. VS. VY VO
*HEARING ON MOTION FOR DISCOVERY MTN TO DEEM REQs FOR ADMISSIONS ADMITTED & FOR
NONAPPEARANCE FILED BY PLTF ON 05/28/2026
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

The motion is unopposed and properly supported. It is, therefore, granted.

11. 9:00 AM CASE NUMBER: L26-01495
CASE NAME: JPMORGAN CHASE BANK N.A, VS. JOSELITO MARQUEZ
***MOTION/PETITION TO COMPEL ARBITRATION MOTION TO COMPEL ARBITRATION FILED BY DEF**
ON 05/08/2026
FILED BY: MARQUEZ , JOSELITO
TENTATIVE RULING:

The motion is unopposed and properly supported. It is, therefore, granted.

12. 9:00 AM CASE NUMBER: L26-04497
CASE NAME: WESTLAKE SERVICES, LLC VS. JALEEL PERRY
HEARING IN RE: APP FOR WRIT OF POSSESSION AS TO JALEEL PERRY
FILED BY: WESTLAKE SERVICES, LLC
TENTATIVE RULING:

The motion is unopposed and properly supported. It is, therefore, granted.

13. 9:00 AM CASE NUMBER: L26-09363
CASE NAME: PATRICK BUCKY VS. CITY OF CONCORD, CODE ENFORCEMENT DIVISION
HEARING IN RE: APPEAL OF ADMINISTRATIVE FINE OR PENALTY
FILED BY:
TENTATIVE RULING:

The parties are to appear. Both sides should bring whatever evidence they wish the Court to consider.

14. 9:00 AM CASE NUMBER: MSL17-04660
CASE NAME: DISCOVER BANK VS NAVA
***HEARING ON MOTION IN RE: MOTION FOR ENTERING JUDGMENT PURSUANT FILED BY PLTF. ON**
05/11/2026
FILED BY: DISCOVER BANK
TENTATIVE RULING:

The motion is unopposed and properly supported. It is, therefore, granted.

15. 9:00 AM CASE NUMBER: N26-1421
CASE NAME: SARA PARKER VS. ALTAVISTA CONCRETE, INC.
HEARING IN RE: PETITION BY SARA PARKER FOR AN ORDER RELEASING PROPERTY FROM CLAIM OF
MECHANIC'S LIEN
FILED BY: PARKER, SARA
TENTATIVE RULING:

The motion is unopposed and properly supported. It is, therefore, granted.

16. 9:00 AM CASE NUMBER: N26-1422
CASE NAME: SARA PARKER VS. CONCORD READY MIX, INC.
HEARING IN RE: PETITION BY SARA PARKER FOR AN ORDER RELEASING PROPERTY FROM CLAIM OF MECHANIC'S LIEN
FILED BY: PARKER, SARA
TENTATIVE RULING:

The motion is unopposed and properly supported. It is, therefore, granted.

Courtroom Clerk's Session

17. 1:30 PM CASE NUMBER: MS26-0655
CASE NAME: CORLISS LEE VS. JEFFREY MILLER
JURY TRIAL
FILED BY:
TENTATIVE RULING:

The parties are to appear.